

STATE OF NEW YORK

11061--A

IN ASSEMBLY

April 24, 2026

Introduced by M. of A. K. BROWN -- read once and referred to the Committee on Local Governments -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend chapter 63 of the laws of 1971 incorporating the "Centerport Volunteer Exempt Firemen's Benevolent Association" and providing for its powers and duties, in relation to the collection and use of foreign fire insurance premium taxes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Sections 1, 2 and 7 of chapter 63 of the laws of 1971
2 incorporating the "Centerport Volunteer Exempt Firemen's Benevolent
3 Association" and providing for its powers and duties, are amended to
4 read as follows:

5 Section 1. Incorporation: membership. A not-for-profit corporation by
6 the name of "Centerport Volunteer Exempt [~~Firemen's~~ **Firefighter's**
7 Benevolent Association" is hereby created. It shall be composed of such
8 persons eligible to membership therein as hereinafter provided as shall
9 (a) notify the secretary of the Centerport Fire Department Company, a
10 volunteer fire company, in writing prior to the organization meeting of
11 such corporation hereinafter provided for of their desire to become
12 members, or (b) shall attend such meeting or an adjournment thereof, and
13 also such persons so eligible as may thereafter become members of such
14 corporation, pursuant to its by-laws.

15 § 2. Persons eligible to membership. All persons who are now, or have
16 been, or hereafter shall be active volunteer members of the Centerport
17 Fire Department Company, in the town of Huntington, County of Suffolk,
18 or of any fire corporation in the Centerport Fire District in such town
19 and who have acquired or shall hereafter acquire the status of exempt
20 volunteer [~~fireman~~ **firefighter** as defined in section two hundred of the
21 general municipal law by virtue of having rendered service in the
22 Centerport Fire Department Company or in a fire corporation in the
23 Centerport Fire District, and all persons who are now or hereafter shall
24 be active volunteer members of the Centerport Fire Department Company
25 shall be eligible for membership in the corporation created by this act,

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 except that any [~~fireman~~] firefighter who has been removed for cause,
2 expelled or dropped from the rolls of any fire company or fire depart-
3 ment, and who has not been reinstated therein, shall not be eligible for
4 membership in such corporation. The membership of any person in such
5 corporation shall terminate when [~~his~~] their membership as an active or
6 volunteer member of the Centerport Fire Department Company shall termi-
7 nate before such person shall have acquired the status of exempt volun-
8 teer [~~fireman~~] firefighter as defined in section two hundred of the
9 general municipal law by virtue of having rendered service in the
10 Centerport Fire Department Company.

11 § 7. Precept for payment of foreign fire insurance premium taxes.
12 Notwithstanding any contrary provisions of any general, special or local
13 law, or of any city charter or ordinance, heretofore or hereinafter
14 enacted, such corporation shall collect and there shall be paid to it
15 all taxes imposed by section [~~five hundred fifty-three~~] nine thousand
16 one hundred four of the insurance law for fire department use and bene-
17 fit, upon premiums for insurance against loss or damage by fire covering
18 property situated in the Centerport Fire District in the Town of Hunt-
19 ington, County of Suffolk, or within any duly organized territory in
20 which the Centerport Fire Department Company is or may be obligated to
21 render fire protection. The officer of said corporation designated by
22 its by-laws to collect and receive the aforesaid tax shall have the
23 powers and be subject to all the provisions of the insurance law, relat-
24 ing to treasurers of fire departments. Such corporation shall also be
25 entitled to receive a share of the tax imposed by section [~~five hundred~~
26 ~~fifty-four~~] nine thousand one hundred five of the insurance law, based
27 upon the business written in the territory with respect to which it is
28 entitled to collect and receive the tax under section [~~five hundred~~
29 ~~fifty-three~~] nine thousand one hundred four of the insurance law. Such
30 taxes shall only be used [~~for the care and relief of disabled or indi-~~
31 ~~gent volunteer and exempt volunteer firemen and their families~~] by the
32 corporation in furtherance of its purposes as set forth in section three
33 of this act.

34 § 2. This act shall take effect immediately; provided, however, that
35 the amendments to section 7 of chapter 63 of the laws of 1971 made by
36 section one of this act shall apply to taxes due on premiums received on
37 or after January 1, 2027.